

 Internal Case Management System Worksheet - Case Closing					Top Allegation MISSING PROPERTY - FROM PERSON - PRISONER		Group G33-GROUP 33 Date of This Report 02/20/2019	
Date Reported 06/09/2018	Date Assigned 06/09/2018	IAB Log No. 2018-22546	Case No. (G33) C- 2018-236	Folder Type CORRUPTION	Preliminary Case Type CORRUPTION	Follow-Up No.	Worksheet Tracking No. 3572190	

Topic/Subject (Case Closing) CASE CLOSING (UNSUBSTANTIATED / MPV)	Activity Date 02/20/2019	Activity Time 07:00
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement Case #: C-2018-236 Log #: 2018-22546 Subject Officers: P.O. Brian Muldowney, Tax #953149, 60 Precinct Date of Appointment: 07/11/2012 Probation: No Current Duty Status: Full Duty Active P.O. Miguel Rodriguez, Tax #942460, 60 Precinct Date of Appointment: 07/10/2006 Probation: No Current Duty Status: Full Duty Active P.O. Mekubahdya Yisrael, Tax #953592, 60 Precinct Date of Appointment: 07/11/2012 Probation: No Current Duty Status: Full Duty Active Sgt. Alexander Shimin, Tax #951246, 30 Precinct Date of Appointment: 07/06/2011 Date of Promotion: 07/27/2018 Probation: Yes Current Duty Status: Full Duty Active Date Case Received: 06/13/2018 Date of Occurrence: 06/08/2018 Administrative Statute of Limitations Expires: 12/08/2019 Classification: C2 Investigator: Det. Yevgeny Vaks, Tax #947564

Team Leader:

Lt. Ewa Lapinska, Tax #935158

Overall Case Disposition:

Unsubstantiated / Minor Procedural Violation.

Details:

Log# 2018-22546

On June 9, 2018, [REDACTED] called the command center and stated that her [REDACTED] was arrested. [REDACTED] stated that he is now missing an unspecified amount of money and his sunglasses. [REDACTED] also stated that he was slammed against his car and that they searched his vehicle and didn't find anything. [REDACTED] stated that his cellphone was returned and that he can pick up \$112 at 120 Schermerhorn St.

Command center investigator contacted [REDACTED] who stated that he was pulled over for a traffic infraction. The officers then pulled him by his shirt, dragged him out of his vehicle, and slammed him against his car. [REDACTED] further stated that he had \$400 and only \$100 was returned to him. [REDACTED] further stated that his cellphone and sunglasses were returned to him, but he did not receive his currency. Callout #2018-22546 was conducted by investigators from Group 33. Capt. Isom, 60 Precinct XO was notified in regards to the force allegation.

Identification and Interview of the complainant:

The complainant [REDACTED], known to the department under NYSID # [REDACTED], Male/white/27 Yrs old, who resides at [REDACTED], was interviewed by investigators.

[REDACTED] stated that he took out \$600 from his safe to purchase items for an upcoming event and proceeded to go to his car and begin to drive. [REDACTED] stated that he was in traffic and did cross over two double solid yellow lines and was pulled over for doing so. [REDACTED] stated that a black officer opened his car door and pulled him by his arm out of the vehicle. The same officer then frisked him and felt a bulge, which was money. The officer pulled out the money from his pocket and he does not know where he placed the money afterwards. [REDACTED] stated that he was placed under arrest and transported to the precinct. [REDACTED] stated that his money was not counted in front of him at the desk. [REDACTED] stated that he received \$100 and another \$112 was vouchered. [REDACTED] insisted that he had more money than that. [REDACTED] also stated that he did not get back his Gucci sunglasses. [REDACTED] positively identified P.O. Muldowney from a photo array as one of the officers on scene.

A background check on [REDACTED] revealed [REDACTED]. ICMS check revealed three additional logs. Case #C-2016-685 - [REDACTED] is a witness involving a complaint his mother made and a FADO Force - Firearm Pointed allegation stemming from a 6/1/18 incident. No IAPRO records, and one CCRB in which [REDACTED] is a witness. None related to current allegation.

Identification and Interview of Witness:

Sgt. Diggs was identified as a witness after a review of the command log entries and her being assigned as the immediate supervisor of the subject officers on the date of the incident.

Canvass:

A canvass was conducted of the arrest location. Video footage was obtained from [REDACTED], located at [REDACTED]. The video does depict the circumstances of the car stop. However, the video could not identify the officers and there was no sign of any of the officers taking any property or using unnecessary force.

Identification of Subject Officer(s):

P.O. Muldowney was identified as a subject officer by the complainant from a photo array.

P.O. Yisrael was identified as a subject officer through roll call entries and memo book entries as being on scene of the incident and subsequent PG hearing.

P.O. Rodriguez was identified as a subject officer through roll call entries and memo book entries as being on scene of the incident and subsequent PG hearing.

Sgt. Shimin was identified as a subject officer through roll call entries and memo book entries as being on scene of the incident and subsequent PG hearing.

Review of Department Records:

>Arrest # [REDACTED] □ Details the arrest of the complainant, [REDACTED] on June 8, 2018, on charges of CPW 3rd, Reckless Driving, Disobey Traffic Device, and Illegal Signal: Unsafe/Fail to. P.O. Muldowney is listed as the arresting officer. The arrest time is 16:12 hours, at the south west corner of Neptune Ave and Coney Island Ave, Brooklyn, NY. The details are as follows: □ "At TPO deft was driving a 2010 GY Hyund NY plate # [REDACTED] e/b on Neptune Ave when deft did recklessly drive across double

yellow solid lines going against w/b traffic without signaling causing a hazardous condition. Upon car stop a strong odor of marijuana was coming from the car. The deft was removed from the car and was found to be in possession of a switchblade."□

>Complaint report #2018-060- [REDACTED] - Details the circumstances for the arrest of the complainant, [REDACTED] on June 8, 2018. The location is listed as the south west corner of Neptune Ave and Coney Island Ave Brooklyn, NY and the occurrence time is 16:12 hours. The details are as follows: "□At TPO deft was driving a 2010 GY Hyund NY plate # [REDACTED] e/b on Neptune Ave when deft did recklessly drive across double yellow solid lines going against w/b traffic without signaling causing a hazardous condition. Upon car stop a strong odor of marijuana was coming from the car. The deft was removed from the car and was found to be in possession of a switchblade.□"

>PETS Property Clerk Invoice [REDACTED] □ Details the inventory of [REDACTED] s USC in the amount of \$112 and is categorized as safekeeping. No other currency vouchers were created for [REDACTED] PETS Property Clerk Invoice [REDACTED] - Details the inventory of [REDACTED] sunglasses and is categorized as safekeeping. PETS Property Clerk Invoice [REDACTED] - Details the inventory of [REDACTED] cellphone and is categorized as safekeeping. PETS Property Clerk Invoice # [REDACTED] □ Details the inventory of [REDACTED] switchblade and is categorized as arrest evidence.

>Review of Command Log entry disclosed that \$112 were vouchered and \$100 was returned to [REDACTED] Furthermore, a review of the command log revealed that all subject officers were signed in as present for duty.

>Review of Pedigree Card revealed that the complainant had a total of \$212 and that \$100 was returned to [REDACTED]

>DAS LITE audit revealed that the arresting officer, P.O. Muldowney, ran [REDACTED] after the arrest occurred. No other officers were found and a plate check audit was also negative.

>ZFinest audit revealed that P.O. Rodriguez ran [REDACTED] after his arrest.

>TRI report revealed the identities of all subject and witness officers. Furthermore, the TRI report stated that the complainant did not make any allegations of injuries and did not have any visible injuries while in Police custody. The report was investigated by Capt. Isom.

>A review was conducted of P.O. Muldowney's, P.O. Rodriguez's and Sgt. Shimin's memo book entries from 6/8/2018. The review disclosed that their entries were found to be within Department guidelines. A review of P.O. Yisrael's memo book revealed that they were not within Department guidelines and a letter of referral was issued in regards.

>Review of Command Center audio did not reveal any additional information.

Computer and Related Background checks:

CCRB review did not disclose any complaints filed by [REDACTED] in regards to this case.

Command profile report and Garnishment list was negative for P.O. Muldowney, P.O. Yisrael, and Sgt. Shimin. P.O. Rodriguez is on the command profile report for case #M-2016-752, which involved the arrest of a US Postal worker that was news worthy. The case was substantiated.

Review of ICAD # [REDACTED] revealed that 60SP8 had 1 under at 16:12 hours on 6/8/2018 at the intersection of Neptune Ave and Coney Island Ave Brooklyn, NY.

AVL check at the location of arrest revealed that RMP #016513-060 stopped at the location at 15:58 hours, and it is an unmarked RMP. At 16:02 hours, RMP #754513-TEBS passes through the location and does not stop. No other vehicles were captured at the location during the time of the arrest.

Updated background check on Sgt. Shimin:

PEPR check:

Sergeant Alexander Shimin 30Pct.

Appt. Date: 07/06/2011

Date of Promotion: 07/27/2018

Assign. Date: 08/6/2018

DOB: [REDACTED]

Address: [REDACTED]

Phone number: [REDACTED]

No monitoring record

No prior Tax numbers

ICMS check:

ICMS check revealed a total of seven (7) events, including current case. Three (3) OG-cases, one (1) M-case, one (1) case not yet classified and two (2) C-cases. One C-case is the current case and one is similar in nature for a missing property, in which Sgt. Shimin is a witness and it was closed as unsubstantiated. The Case number was C-2015-0472. None other are similar in nature.

CPI check:

CPI check revealed a total of four (4) events. Two (2) background checks, one (1) Chronic sick-A and one (1) Internal investigation by BSIU, the case is closed and pending disposition. None of the allegations are similar in nature.

IAPRO check:

IAPRO check revealed a total of two (2) events. One (1) OG-case, and one (1) CC-case. None are similar in nature.

CCRB check:

CCRB check revealed zero (0) events.

Updated background check on P.O. Yisrael:

PEPR check:

P.O. Mekubahdya Yisrael 60Pct.

Appt. Date: 7/11/2012

Assign. Date: 5/6/2014

DOB: [REDACTED]

Address: [REDACTED]

Phone: [REDACTED]

No prior monitoring record

No prior Tax numbers

ICMS check:

ICMS check revealed a total of ten (10) events, including current case. Three (3) M-cases, one (1) F-case, one (1) C-case, which is the current case, three (3) OG-cases, one (1) IT-case and one Z-case. None are similar in nature. Case #M-16-2719 was a IT test procedural failure, which was substantiated for failure to voucher property and safeguard property. The property was a bicycle and it did not go missing.

CPI check:

CPI check revealed a total of seven (7) events. One (1) background check, one (1) Dept. Auto Accident, and five (5) Internal Investigations. None similar in nature.

IAPRO check:

IAPRO check revealed zero (0) prior events.

CCRB check:

CCRB check revealed three (3) prior events. None similar in nature.

Updated background check on P.O. Rodriguez:

PEPR check:

Police Officer Miguel Rodriguez 60Pct.

Appt. Date: 7/10/2006

Assign Date: 4/9/2016

DOB: [REDACTED]

Home Address: [REDACTED]

Home Phone: [REDACTED]

Cellphone: Not provided

No Monitoring record

No prior Tax numbers

ICMS check:

ICM S check revealed a total of fifteen (15) events, including current incident. Six (6) OG-Cases, Three (3) CC-Cases, Two (2) M-Cases, One (1) C-Case, two (2) Z-Case, and One (1) FI-Case. None similar in nature, except current incident.

CPI check:

CPI check revealed a total of Ten (10) events. One (1) Command Discipline, Two (2) Department Auto Accidents, Four (4) Internal Investigations, One (1) Transferred for Cause, One (1) Charges and Specifications, and One (1) Background check. None similar in nature.

IAPRO check:

IAPRO check revealed a total of eleven (11) events. One (1) CC-Case, One (1) F-Case, and Nine (9) OG-Cases.

CCRB check:

CCRB check revealed a total of Three (3) events. Case# 201010487, 201602548, 201708715. None similar in nature.

Updated background check on P.O. Muldowney:

PEPR check:

Police officer Brian Muldwoney, 60 Precinct

Appt. date: 07/11/2012

Assign date: 05/06/2014

DOB: [REDACTED]

Address: [REDACTED]

Phone number: [REDACTED]
No Monitoring history
No prior Tax numbers

ICMS check:

ICMS check revealed a total of nine (9) events, including the current case. Three (3) OG-cases, two of which are for failure to activate body worn camera, one (1) Z-case, one (1) CC-case, one (1) M-case, one (1) R-case and one (1) IT-case, and one C-case, which is the current case. M-case 2018-0290 is for Use of Force and the case was partially substantiated for not preparing a TRI report, otherwise there was no excessive use of force and CC-2018-218 was a spin off to CCRB from the M-case. None other are similar in nature to current allegations.

CPI check:

CPI check revealed a total of four (4) events. One (1) background check, and three (3) Internal investigations. One Internal investigation is in regards to M-case 2018-290 as described in the ICMS check. None other are similar in nature to current allegations.

IAPRO check:

IAPRO check revealed one (1) event. Not similar in nature to current allegations.

CCRB check:

CCRB check revealed a total of four (4) events. Case #201600502 for disputed search of a vehicle, which was unsubstantiated, 201800929 was force and it is closed pending litigation, 201803335 for improper use of a body worn camera and other unrelated and improper search of a vehicle was closed as unsubstantiated and other misconduct, and 20184009 for improper use of a body worn camera and other unrelated and improper search of a vehicle was closed as unsubstantiated and other misconduct.

Conferrals conducted:

Intelligence report on P.O. Muldowney revealed: "□ Agent stated that P.O. Muldowney is known to be very pleasant to talk to. □ Agent had nothing further to add."

Intelligence report on P.O. Rodriguez revealed: "□ Agent states that P.O. Miguel Rodriguez is assigned to the [REDACTED] crime team, is considered a straight-up honest person, by the book and a good cop overall. The agent states that the s/o is very active and likes to make arrests. The agent had no information in regards to the incident being investigated in this case. □"

Second intelligence report on P.O. Rodriguez revealed: "□ Agent stated that P.O. Rodriguez is considered a hard worker and is very active on the streets. Agent further stated that, everyone likes him in the command because he is very helpful and a very nice person to talk to. Agent has no further information at this time.

Third intelligence report of P.O. Rodriguez revealed: "□ S/o is assigned to the anti-crime team, 3rd platoon. Despite the fact that he came to the 60 Pct as an act of "highway therapy" (media worthy case, 2016 arrest of a US postal carrier, IAB case #M-2016-752) he has proven himself to be a highly competent, enthusiastic worker who does everything "by the book." additionally, he is not known to have any financial problems. Agent adds that since violent crime is down in the 60 Pct, the anti-crime team makes a lot of drug collars, heroin and crystal meth etc. Agent feels the allegation is a fabrication on the part of the defendant. □"

Intelligence report on P.O. Yisrael revealed: "□ Agent states that P.O. Yisrael is assigned to the day tour crime team, is considered a good cop, very active, and a very religious person. Agent states that there are no negative issues or rumors about the s/o. Agent had no information in regards to the incident being investigated in this case. □"

Second intelligence report on P.O. Yisrael revealed: "□ S/o is assigned to the 2nd platoon anti-crime team. Agent states the s/o's work ethic is excellent, and that he earned that spot on the team. Agent adds the s/o is Jewish and is also the EEO liaison for the command. Agent had not heard of the s/o engaging in any misconduct, nor are there any known financial abnormalities in the s/o's life that makes the agent suspicious."

Intelligence report on Sgt. Shimon revealed: "□ Agent states that Sgt. Alexander Shimin, (recently promoted to Sgt.) was assigned to the crime team. Sgt. Shimin was considered a hard worker, quiet, and did what was required. Agent states that the allegation of missing property is unlikely because the s/o was on the Sgt's list and he will not jeopardize his promotion or his job over a missing property allegation. Agent did not have any information in regards to the incident being investigated in this case."

Second intelligence report on Sgt. Shimon revealed: "S/o: Sgt. Alexander Shimin, 30 Pct. was a newly promoted Sgt. When he was transferred into the 30 Pct. S/o was a squad Sgt., but recently became the training Sgt. In the command. S/o is a good boss and a hard worker. S/o is well liked in the command. He goes by the book and is always helpful to MOS in the command. Cell#: [REDACTED]. Job cell: [REDACTED]. Agent had no knowledge regarding the allegation of missing property - from person - prisoner, which is alleged to have occurred while s/o was assigned to the 60 pct. as a police officer. Agent states based on s/o's character and work ethic observed, the allegation would be out of character and unlikely for the s/o."

I conferred with Group 52 who provided IT history for all subject the officers. P.O. Muldowney was randomly tested by Group 52 on 5/11/16 and it was a pass. The test was for narcotics property. P.O. Yisrael was tested randomly by Group 52 on 10/14/15 and it was a procedural failure. P.O. Yisrael failed to voucher property and safeguard property. The property was a bicycle and it did not go missing. P.O. Rodriguez was never tested. Sgt. Shimin was never tested.

I conferred with 60 Pct Asst. ICO, Sgt. Maganani, who stated that on the date of the incident, the body worn camera was in the

trial period and regulations on when to turn them on changed on a daily basis.

On 6/8/18 a body camera check on P.O. Muldowney revealed a short video of P.O. Yisrael walking [REDACTED] to the Desk as P.O. Muldowney was behind them. The camera then shows P.O. Muldowney next to the desk, filling out paper work and placing an unknown amount of money into a plastic security envelope. The camera gets turned off afterwards.

I conferred with ADA Kelly Muse from civil rights and she waived criminality against all subject officers.

Proactive Measure:

N/A

Other Information of Investigative Value:

N/A

Patrol Guide 206-13 hearings:

PG hearing of P.O. Muldowney as a subject on 1/29/19:

P.O. Muldowney stated that on the date of the incident he was assigned to Crime coverage overtime and that his partner was P.O. Rodriguez. P.O. Muldowney stated that P.O. Yisrael called him and stated that they had a car stop and that he should come to their location. P.O. Muldowney stated that when he arrived, the complainant was already out of the vehicle standing by the back bumper of his vehicle. P.O. Muldowney stated that he spoke to P.O. Yisrael on scene as to what happened to lead to the arrest. P.O. Muldowney stated that the vehicle smelled of marijuana and he conducted a search of the vehicle. P.O. Muldowney stated that a knife was recovered by either P.O. Yisrael or P.O. Shimin. P.O. Muldowney stated that he called the Sergeant and she confirmed the arrest. P.O. Muldowney stated that there was money on the front driver's side seat of the car, which he believes was taken out of the prisoners pockets, during the initial search. P.O. Muldowney stated that he took the money off the car seat and put it into one of the complainant's pockets. P.O. Muldowney stated that the complainant was placed into P.O. Yisrael's and P.O. Shimin's vehicle and was transported by them. P.O. Muldowney stated that he drove back their assigned vehicle and P.O. Rodriguez drove back the complainant's vehicle. P.O. Muldowney stated that when he returned to the precinct, he realized that his body camera was not on and turned it on only then. P.O. Muldowney stated that he does not remember if the complainant was handcuffed and does not remember if there were any items that were on top of the vehicle. P.O. Muldowney stated that during the search of the vehicle he did not recover anything. P.O. Muldowney stated that he does not recall if he conducted a search of the complainant on the scene of the arrest and does not remember seeing anyone else conduct a search of the complainant while on the scene of the arrest. P.O. Muldowney stated that he does not recall how much money was on the seat and did not count it there. P.O. Muldowney stated that he does not remember the denominations of the money. P.O. Muldowney stated that he walked up to the desk with P.O. Yisrael, who was walking the complainant. P.O. Muldowney stated that he does not remember if he conducted a search of the prisoner in front of the desk. As per body camera footage, P.O. Muldowney did admit that he placed the complainant's money into a plastic security bag in front of the desk, but does not know who took the money out of the complainant's pocket. P.O. Muldowney stated that he did conduct a count of the money in front of the desk and the complainant never stated that it was not enough money. P.O. Muldowney stated that the complainant never stated throughout the entire arrest process that he was missing any money and there were no incidents in the cell that would suggest that a different prisoner took his money. P.O. Muldowney stated that he was assigned a body camera at the time and that he forgot to put the camera on and only remembered when he arrived at the precinct, and then put it on. P.O. Muldowney stated that he did not take the money and does not know if anyone took the complainants money.

PG hearing of P.O. Rodriguez as a Subject on 1/29/19:

P.O. Rodriguez stated that on the date of the incident he was assigned to Crime coverage on overtime. P.O. Rodriguez stated that P.O. Muldowney received a phone call from an officer that there was a car stop and that they should respond to the location for an arrest. P.O. Rodriguez stated that when they responded to the location, the complainant was already outside of the vehicle and P.O. Yisrael stated to him that he had already searched the complainant. P.O. Rodriguez stated that he did not witness the search. P.O. Rodriguez stated that he smelled marijuana emanating from the vehicle and he and P.O. Muldowney looked inside the vehicle to see if there was any more marijuana or weapons. P.O. Rodriguez stated that the complainant was already handcuffed when they arrived and standing in the back of his vehicle by the bumper. P.O. Rodriguez stated that he drove the complainants car back to the 60 Pct. P.O. Rodriguez stated that he does not believe he searched the complainant and does not remember if P.O. Muldowney searched the complainant. P.O. Rodriguez stated that he did not see any personal effects on top of the car that were possibly taken out during a search. P.O. Rodriguez stated that he did not personally put any items on top of the complainant's vehicle. P.O. Rodriguez stated that he does not believe the Sergeant responded to the scene. However, someone did call the supervisor and was told to bring the arrest to the 60 Pct. P.O. Rodriguez stated that while transporting the complainants vehicle to the precinct he did not see any money and did not see any money while he was on scene of the arrest. P.O. Rodriguez stated that he only searched one side of the vehicle while on scene and did not see any money on his side. P.O. Rodriguez stated that he drove the car to the 60Pct, parked it in the lot, and brought the keys to one of the officers that were inside the precinct and does not remember which one. P.O. Rodriguez stated that when he walked into the precinct, the complainant was already in the precinct and does not remember who was next to the prisoner by the desk. P.O. Rodriguez stated that he does remember that P.O. Muldowney was by the desk. P.O. Rodriguez stated that he does not recall anyone searching the prisoner by the desk, and does not remember any money on the desk or any money on the prisoner. P.O. Rodriguez stated that he did not conduct a search of the prisoner and does not know who did by the desk. P.O. Rodriguez stated that he did not physically handle the prisoner. P.O. Rodriguez stated that he did not go to the cell area and so does not know who searched him there. P.O. Rodriguez stated that he did not continue to stay with P.O. Muldowney and did not witness anything further. P.O.

Rodriguez stated that at the time of the incident he was not assigned a body camera. P.O. Rodriguez stated that the complainant never told him that he was missing money. P.O. Rodriguez stated that he did not take any money and did not see anyone take any money.

PG hearing of P.O. Yisrael as Witness (later changed to a subject) on 12/26/18:

P.O. Yisrael stated that on 6/8/18, he was working the Beach crime detail overtime on the second platoon, in plain clothes. P.O. Yisrael stated that he and his partner, P.O. Shimin, who is now a Sergeant, initiated the stop. P.O. Yisrael stated that the complainant was driving recklessly, swerving in and out of lanes, and he was observed throwing baggies out his window. P.O. Yisrael stated that the complainant was pulled over and asked to step out of the car. The complainant was brought to the back of the vehicle where P.O. Yisrael conducted a field frisk. P.O. Yisrael stated that the complainant walked out of the car on his own accord and was never pulled out. P.O. Yisrael stated that he never pulled anything out of the complainant's pocket and his partner conducted the search of the vehicle and found a knife. P.O. Yisrael stated the P.O. Muldowney and his partner, P.O. Rodriguez, were called to the scene and they explained to them the circumstances of the arrest and P.O. Muldowney took the arrest. P.O. Yisrael stated his partner took the complainant in their car and transported him to the 60 Pct. P.O. Yisrael is not sure who drove the complainant's vehicle back, but he believes that P.O. Rodriguez drove the complainant's car and P.O. Muldowney drove the RMP back to the 60 Pct. P.O. Yisrael stated that when they transported the prisoner, him and his partner were the only MOS in the vehicle. P.O. Yisrael stated that he did not frisk the complainant in the parking lot of the station house and walked him inside to the desk with P.O. Muldowney. P.O. Yisrael stated that he does not recall if P.O. Muldowney searched the complainant at the desk. P.O. Yisrael stated that he never took possession of any of the complainant's property. P.O. Yisrael stated that the complainant never told him that he is missing money. P.O. Yisrael stated he was assigned a body camera, however at that time it was a pilot program and it was only to be worn on the third platoon and since he did a day tour, he did not have it with him. P.O. Yisrael stated he did not take the alleged missing money and does not know if anyone did. P.O. Yisrael believes that his partner called the sergeant from the scene and the Sergeant told them to bring the arrest to the precinct.

PG hearing of Sgt. Shimin as a witness (later changed to a subject) on 12/26/18:

Sgt. Shimin stated that on 6/8/18, he was assigned to the Coney Island Detail overtime in plain clothes on the second platoon. Sgt. Shimin stated that on that date, he and his partner, P.O. Yisrael, conducted a car stop on Coney Island Ave and Neptune Ave. The vehicle was stopped for failure to signal and went into oncoming traffic to pass vehicles. The motorist was also in possession of a switchblade knife. Sgt. Shimin stated that P.O. Yisrael approached the driver and he approached on the passenger side. Sgt. Shimin stated that P.O. Yisrael took the motorist out of the vehicle. Sgt. Shimin does not recall any force being used against the motorist by him or P.O. Yisrael and believes the motorist was compliant. Sgt. Shimin stated that the knife he recovered was in plain view and that is why he conducted a search of the vehicle. Sgt. Shimin stated that he did not conduct a search or frisk of the complainant and believes that P.O. Yisrael only conducted a frisk of the complainant. Sgt. Shimin stated that he does not recall if P.O. Yisrael took anything out of the complainant's pocket and does not recall if P.O. Yisrael took anything and put it on top of the vehicle. Sgt. Shimin stated that P.O. Yisrael called P.O. Muldowney and his partner P.O. Rodriguez to come to the scene. P.O. Muldowney then came to the scene and placed the motorist under arrest. Sgt. Shimin stated that he and P.O. Yisrael transported the prisoner to the 60Pct and either P.O. Muldowney or P.O. Rodriguez drove the complainant's vehicle back to the command. Sgt. Shimin stated that when they arrived at the precinct, P.O. Yisrael and P.O. Muldowney, who met them in the parking lot, walked the prisoner inside the precinct. Sgt. Shimin stated that he stayed behind to check the RMP for contraband and did not go in front of the desk at any point. Sgt. Shimin does not recall if anyone searched the prisoner in the parking lot of the precinct. Sgt. Shimin stated that one of the Officers called the Sergeant from the scene of the arrest and the Sergeant told them to bring the arrested to the precinct. The Sergeant never came to the scene. Sgt. Shimin stated that the prisoner never mentioned to him that he was missing money. Sgt. Shimin stated that he was not assigned a body camera at that time. Sgt. Shimin stated that he never took the alleged missing money and does not know if anyone did.

PG hearing of Sgt. Diggs as a witness on 12/26/18:

Sgt. Diggs stated that she was assigned to crime coverage on 6/8/18. Sgt. Diggs stated that she started at [REDACTED] hours on that date. Sgt. Diggs stated that she is aware that an arrest was made by P.O. Muldowney, but could not respond to the scene because she was on the other side of the Precinct. Sgt. Diggs stated that they called her and told her the particulars of the arrest and she told them to bring it in. Sgt. Diggs does not remember who made the call to her. Sgt. Diggs stated that when the prisoner was brought in, she was on the desk and P.O. Yisrael and P.O. Muldowney brought in the prisoner. Sgt. Diggs does not recall who conducted a search of the prisoner. Sgt. Diggs stated that money was placed on the desk and was counted by the officer and by her. Sgt. Diggs stated that the money was counted in front of the prisoner and that he never stated that he was missing money. Sgt. Diggs stated that the prisoner never stated that unnecessary force was used against him. Sgt. Diggs stated that she was not assigned a body camera. Sgt. Diggs stated that she did not take the alleged missing money and does not know if anyone did.

Supervisory Deficiencies:

N/A

Programmatic Review:

This case does not qualify for a programmatic review.

Conclusion:

After conducting a complete and thorough investigation into the allegation of missing property, there is insufficient evidence to

prove or disprove the allegation. All Officers were interviewed under the provisions of PG 206-13, and each denied the allegation. Therefore, the above allegation is to be closed as unsubstantiated. Investigative steps taken during the course of the investigation could not prove or disprove the additional allegation of Use of Force level 1 against all subject officers. A TRI report was prepared by the Duty Captain and the complainant did not claim force at the time. Therefore, the above allegation is to be closed as I & I. The additional allegation of Force - Physical Force against all subject officers could not be proven or disproven during the course of the investigation. Therefore, it is recommended that the allegation Force - Physical Force be closed as Unsubstantiated. The investigation did prove that the arrest and search of the vehicle was within guidelines and the complainant did plead guilty to his charges as per an OCA check. Therefore, the Allegation of Disputed Arrest on P.O. Muldowney and Disputed Search of a Vehicle on P.O. Shimin, P.O. Muldowney and P.O. Rodriguez, is to be closed as Exonerated. The investigation revealed that P.O. Muldowney did not activate his body worn camera as per NYPD guidelines. Therefore, the allegation of Failure to Activate Body Worn Camera is to be closed as a Minor Procedural Violation with a letter of referral. The investigation further revealed that P.O. Yisrael did not make proper and complete memo book entries in regards to the car stop. Therefore, the allegation Memo book Incomplete/Improper is to be closed as a Minor Procedural Violation with a letter of referral. After a conferral with Deputy Inspector Russo, Commanding Officer of Group 33, it is the recommendation of the undersigned that the case be closed as Unsubstantiated / Minor Procedural Violation.

Subjects Involved

Name	Status	Sex	Race	Dob
942460 MIGUEL RODRIGUEZ POM (060-060 PRECINCT)	UNIFORM MEMBER OF SERVICE	MALE		

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Missing Property - from Person - Prisoner	MISSING PROPERTY	LARPRIS-From Prisoner	09/23/2018	12 - Unsubstantiated	02/06/2019
	Comments Investigative steps taken during this investigation could not prove or disprove the allegation of Missing Property. During PG hearing, Officer denied any wrong doing. Therefore, it is recommended that this allegation be closed as Unsubstantiated.					
2	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Abuse of Dept Regulations	Disputed Search	02/04/2019	01 - Exonerated	02/06/2019
	Comments Investigative steps taken during this investigation did prove that the search of the vehicle was within NYPD guidelines. Therefore, it is recommended that the allegation of Disputed Search of a Vehicle be closed as Exonerated.					
3	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Use of Force - Level 1	Arrest Effected	Force Investigation Notification	03/17/2019	04 - Info. and Intelligence	03/17/2019
	Comments This allegation was investigated by Capt. Isom under TRI # [REDACTED]. Therefore, this allegation will be closed as I & I.					
4	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Force - Physical Force	Arrest Effected	O-Other	04/01/2019	12 - Unsubstantiated	04/01/2019
	Comments During the course of this investigation it could not be proved or disproved that the allegation occurred. Therefore, it is recommended that this allegation be closed as Unsubstantiated.					

Name	Status	Sex	Race	Dob
951246 ALEXANDER SHIMIN SGT (030-030 PRECINCT)	UNIFORM MEMBER OF SERVICE	MALE	WHITE	

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	Missing Property - from Person - Prisoner	MISSING PROPERTY	LARPRIS-From Prisoner	02/04/2019	12 - Unsubstantiated	02/06/2019
	Comments Investigative steps taken during this investigation could not prove or disprove the allegation of Missing Property. During PG hearing, Officer denied any wrong doing. Therefore, it is recommended that this allegation be closed as Unsubstantiated.					

2	Full Allegation Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 02/04/2019	Finding 01 - Exonerated	Finding Date 02/06/2019
	Comments Investigative steps taken during this investigation did prove that the search of the vehicle was within NYPD guidelines. Therefore, it is recommended that the allegation of Disputed Search of a Vehicle be closed as Exonerated.					
3	Full Allegation Use of Force - Level 1	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 03/17/2019	Finding 04 - Info. and Intelligence	Finding Date 03/17/2019
	Comments This allegation was investigated by Capt. Isom under TRI # [REDACTED]. Therefore, this allegation will be closed as I & I.					
4	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 04/01/2019	Finding 12 - Unsubstantiated	Finding Date 04/01/2019
	Comments During the course of this investigation it could not be proved or disproved that the allegation occurred. Therefore, it is recommended that this allegation be closed as Unsubstantiated.					
Name 953149 BRIAN MULDOWNY POM (060-060 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE	Dob [REDACTED]
Allegations						
1	Full Allegation Disputed Arrest -	Classification Miscellaneous	Allegation Index O-Miscellaneous Other	Allegation Date 06/09/2018	Finding 01 - Exonerated	Finding Date 02/06/2019
	Comments Investigative steps taken during this investigation did prove that the arrest was lawful and proper. Furthermore, the complainant plead guilty to his charges. Therefore, it is recommended that this allegation be closed as Exonerated.					
2	Full Allegation Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 06/09/2018	Finding 01 - Exonerated	Finding Date 02/06/2019
	Comments Investigative steps taken during this investigation did prove that the search of the vehicle was within NYPD guidelines. Therefore, it is recommended that the allegation of Disputed Search of a Vehicle be closed as Exonerated.					
3	Full Allegation Missing Property - from Person - Prisoner	Classification MISSING PROPERTY	Allegation Index LARPRIS-From Prisoner	Allegation Date 06/09/2018	Finding 12 - Unsubstantiated	Finding Date 02/06/2019
	Comments Investigative steps taken during this investigation could not prove or disprove the allegation of Missing Property. During PG hearing, Officer denied any wrong doing. Therefore, it is recommended that this allegation be closed as Unsubstantiated.					
4	Full Allegation Body Worn Camera - Fail to Activate	Classification Abuse of Dept Regulations	Allegation Index BWC	Allegation Date 02/06/2019	Finding 24 - Minor Procedural Violation	Finding Date 02/06/2019
	Comments Investigative steps taken during this investigation proved that P.O. Muldowney failed to activate his body worn camera. Therefore, it is recommended that this allegation be closed as a Minor Procedural Violation with a letter of referral.					
5	Full Allegation Use of Force - Level 1	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 03/17/2019	Finding 04 - Info. and Intelligence	Finding Date 03/17/2019
	Comments					

	This allegation was investigated by Capt. Isom under TRI # [REDACTED]. Therefore, this allegation will be closed as I & I.				
6	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 04/01/2019	Finding 12 - Unsubstantiated Finding Date 04/01/2019
	Comments During the course of this investigation it could not be proved or disproved that the allegation occurred. Therefore, it is recommended that this allegation be closed as Unsubstantiated.				
Name 953592 MEKUBAHDYA YISRAEL POM (060-060 PRECINCT)		Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race BLACK	Dob [REDACTED]
Allegations					
1	Full Allegation Missing Property - from Person - Prisoner	Classification MISSING PROPERTY	Allegation Index LARPRIS-From Prisoner	Allegation Date 01/07/2019	Finding 12 - Unsubstantiated Finding Date 02/06/2019
	Comments Investigative steps taken during this investigation could not prove or disprove the allegation of Missing Property. During PG hearing, Officer denied any wrong doing. Therefore, it is recommended that this allegation be closed as Unsubstantiated.				
2	Full Allegation Use of Force - Level 1	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 02/04/2019	Finding 04 - Info. and Intelligence Finding Date 02/19/2019
	Comments This allegation was investigated by Capt. Isom under TRI [REDACTED]. Therefore, this allegation will be closed as I & I.				
3	Full Allegation Disputed Search of a Vehicle - Enforcement Action Taken - Arrest/Summons	Classification Abuse of Dept Regulations	Allegation Index Disputed Search	Allegation Date 03/17/2019	Finding 01 - Exonerated Finding Date 03/17/2019
	Comments Investigative steps take during this investigation did prove that the search of the vehicle was within NYPD guidelines. Therefore, it is recommended that the allegation of Disputed Search of a Vehicle be closed as Exonerated.				
4	Full Allegation Memobook Incomplete/Improper -	Classification Abuse of Dept Regulations	Allegation Index Administrative Integrity Issue	Allegation Date 03/17/2019	Finding 24 - Minor Procedural Violation Finding Date 03/17/2019
	Comments During the course of this investigation, it was revealed that P.O. Yisrael improperly filled out his memo book and instead put information on the fly sheet. Therefore, it is recommended that this allegation be closed as a Minor Procedural Violation with a letter of referral.				
5	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 04/01/2019	Finding 12 - Unsubstantiated Finding Date 04/01/2019
	Comments During the course of this investigation it could not be proved or disproved that the allegation occurred. Therefore, it is recommended that this allegation be closed as Unsubstantiated.				

ATTACHMENT

1	 'letter to complainant'
2	 'TRI REPORT'

3	 'Muldowney notice of disposition'
4	 'Muldowney letter of referral'
5	 'Rodriguez notice of disposition'
6	 'Shimin notice of disposition'
7	 'Yisrael notice of disposition'
8	 'Yisrael letter of referral'

Reporting Officer:	Rank DT3	Name VAKS YEVGENY		Tax Reg. No. 947564		Command G33-GROUP 33
Reviewing Supervisor:	Manner of Closing 9M - UNSUBSTANTIATED / MINOR PROCEDURAL VIOLATION	Date Reviewed 04/04/2019	Date of Next Review	Name RICCIARDI MICHAEL		Supv. Tax No. 902273
Endorser:	Rank LCD	Name LAPINSKA EWA	Tax Reg. No. 935158	Command G33-GROUP 33	DateTime Reviewed 02/20/2019 21:48	Status Rejected
	Comments CORRECTIONS TO CLOSING: 1.CONFER WITH G 52 REGARDING INTEGRITY TESTS FOR ALL SUBJECT OFFICERS AND INCLUDE IN THE CLOSING. 2.COMMAND PROFILE/GARNISHMENT LIST FOR PO YISRAEL AND SGT. SHIMIN - WORKSHEET? 3.OBTAIN OUTCOME OF THE ARREST AND INCLUDE IN THE CLOSING. 4.FIX SUBJECT UPDATES AND NODS					
Endorser:	Rank LCD	Name LAPINSKA EWA	Tax Reg. No. 935158	Command G33-GROUP 33	DateTime Reviewed 02/28/2019 17:04	Status Approved
	Comments I CONCUR WITH THE ASSIGNED INVESTIGATOR'S FINDINGS THAT THE CASE SHOULD BE CLOSED WITH THE FINAL DISPOSITION AS UNSUBSTANTIATED/MPV. ALLEGATION OF MISSING PROPERTY FROM PRISONER HAS BEEN THOROUGHLY INVESTIGATED AND NO EVIDENCE WAS OBTAINED THAT WOULD PROVE OR DISPROVE THE CLAIM. DISPUTED ARREST AND SEARCH OF A VEHICLE ALLEGATIONS AGAINST SUBJECT OFFICERS HAVE BEEN EXONERATED SINCE THE OFFICERS INITIATED A LEGAL VTL STOP, BASED ON A TRAFFIC VIOLATION OBSERVED THAT LED TO A LEGAL ARREST. FAIL TO ACTIVATE BODY CAMERA BY PO MULDOWNY RESULTED IN MINOR PROCEDURAL VIOLATION WITH A LETTER OF REFERRAL ISSUED.					
Endorser:	Rank DI	Name RUSSO WILLIAM	Tax Reg. No. 904972	Command G33-GROUP 33	DateTime Reviewed	Status Rejected

					03/04/2019 12:10	
	Comments 1. CORRECTIONS TO CLOSING. 2. FIX MULDOWNNEY LOD.					
Endorser:	Rank LCD	Name LAPINSKA EWA	Tax Reg. No. 935158	Command G33-GROUP 33	DateTime Reviewed 03/05/2019 20:57	Status Approved
	Comments CORRECTIONS COMPLETED. CASE IS RE-SUBMITTED FOR CLOSING.					
Endorser:	Rank DI	Name RUSSO WILLIAM	Tax Reg. No. 904972	Command G33-GROUP 33	DateTime Reviewed 03/06/2019 15:05	Status Approved
	Comments APPROVED. CORRECTIONS NOTED. CASE IS SUBMITTED FOR CLOSING WITH AN OVERALL DISPOSITION OF UNSUBSTANTIATED / MPV. INVESTIGATIVE STEPS INCLUDED, REVIEW OF DEPARTMENT RECORDS, DEPARTMENT COMPUTER AUDITS/REVIEW, CANVASS FOR VIDEO, IAB INTELL, REVIEW BWC, INTERVIEWS, AND PG 206-13 INTERVIEWS, COULD NOT PROVE OR DISPROVE THE ALLEGATION OF MISSING PROPERTY. INVESTIGATIVE STEPS TAKEN DURING THIS INVESTIGATION DID PROVE THAT THE ARREST WAS LAWFUL AND PROPER. FURTHERMORE, THE COMPLAINANT PLEAD GUILTY TO HIS CHARGES, THEREFORE THIS ALLEGATION IS CLOSED AS EXONERATED. INVESTIGATIVE STEPS TAKEN DURING THIS INVESTIGATION DID PROVE THAT THE SEARCH OF THE VEHICLE WAS WITHIN NYPD GUIDELINES. THEREFORE THE ALLEGATION OF DISPUTED SEARCH OF A VEHICLE BE CLOSED AS EXONERATED. INVESTIGATIVE STEPS TAKEN DURING THIS INVESTIGATION PROVED THAT P.O. MULDOWNNEY FAILED TO ACTIVATE HIS BODY WORN CAMERA, THIS ALLEGATION IS CLOSED AS A MINOR PROCEDURAL VIOLATION WITH A LETTER OF REFERRAL. THIS CASE DOES NOT QUALIFY FOR A PROGRAMMATIC REVIEW.					
Endorser:	Rank INS	Name FRIAS JOSE	Tax Reg. No. 907707	Command Z02-ZONE 2	DateTime Reviewed 03/14/2019 14:13	Status Rejected
	Comments A. CORRECTIONS TO CLOSING. FIX MULDOWNNEY, SHIMIN AND YISRAEL NOD. FIX THE CV LETTER. B. CHANGE [REDACTED] TO A COMPLAINANT. C. ADD THE DISPUTED SEARCH OF A VEH ALLEGATION TO YISRAEL BECAUSE HE IS SEEN ON VIDEO ENTERING THE PASSENGER SIDE OF THE VEHICLE. D. WS 21: WHERE IS THE VIDEO OF THE CV GETTING OUT OF THE VEHICLE? IT APPEARS THAT PART IS MISSING ALTHOUGH IT WOULD BE DIFFICULT TO SEE IF HE WAS FORCED OUT. E. WS 37: TRI REPORT INDICATES THE CAPT WAS NOTIFIED ABOUT THE FORCE ALLEGATION FROM IAB. WAS THERE EVER A CCRB CASE? ACCORDING TO THE TRI IT WAS FORWARDED TO PB INVESTIGATIONS. ASCERTAIN THE OUTCOME. \ F. ATTACH THE TRI TO THE CLOSING G. REMOVE CAPT CARLIES. ADD CAPT ISOM AS PATROL DUTY H. ADD THE ALLEGATION USE OF FORCE - LEVEL 1 ALL S/O AGAINST LISTED IN THE TRI AND CLOSED THE ALLEGATION AS I AND I I. WS 63: IT DOESN'T APPEAR YISRAEL HAS PROPER ENTRIES. WS 78 INDICATES HE HAS AN ENTRY ON HIS FLY PAGE. ADD M/B INCOMPLETE IMPROPER, MPV AND ISSUE A LOR. THE NOD WILL HAVE TO BE CHANGED AS WELL. MENTION IN CLOSING RESULT OF STEPS B, C, E, H AND I TRAINING ISSUES: CASE CLASSIFIED OVER 30 DAYS MISSING TLR 8/18					

Endorser:	Rank DI	Name RUSSO WILLIAM	Tax Reg. No. 904972	Command G33-GROUP 33	DateTime Reviewed 04/01/2019 20:53	Status Approved
	Comments APPROVED. CASE IS RE-SUBMITTED FOR CLOSING.					
Endorser:	Rank INS	Name FRIAS JOSE	Tax Reg. No. 907707	Command Z02-ZONE 2	DateTime Reviewed 04/01/2019 21:35	Status Rejected
	Comments FIX COMMENTS ON THE USE OF FORCE - LEVEL 1 ALLEGATION					
Endorser:	Rank DI	Name RUSSO WILLIAM	Tax Reg. No. 904972	Command G33-GROUP 33	DateTime Reviewed 04/01/2019 22:31	Status Approved
	Comments APPROVED. CASE IS RE-SUBMITTED FOR CLOSING.					
Endorser:	Rank INS	Name FRIAS JOSE	Tax Reg. No. 907707	Command Z02-ZONE 2	DateTime Reviewed 04/01/2019 22:40	Status Approved
	Comments CONCUR WITH INVESTIGATIVE FINDINGS. CASE CLOSED AS UNSUBSTANTIATED / MINOR PROCEDURAL VIOLATION.					
Endorser:	Rank INS	Name RICCIARDI MICHAEL	Tax Reg. No. 902273	Command Z02-ZONE 2	DateTime Reviewed 04/02/2019 16:17	Status Rejected
	Comments STEPS TO TAKE: A--CORRECTIONS TO CLOSING B--FIX THE NOD'S (MULDOWNEY, SHIMIN & YISRAEL)					
Endorser:	Rank DI	Name RUSSO WILLIAM	Tax Reg. No. 904972	Command G33-GROUP 33	DateTime Reviewed 04/03/2019 12:47	Status Approved
	Comments APPROVED. CASE IS RE-SUBMITTED FOR CLOSING.					
Endorser:	Rank INS	Name RICCIARDI MICHAEL	Tax Reg. No. 902273	Command Z02-ZONE 2	DateTime Reviewed 04/04/2019 08:18	Status Approved
	Comments ALL STEPS COMPLETED CASE CLOSED AS UNSUB/MPV					